

25CV07189 U.S. Bank National Association v. Christopher W. Johnson

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-04

Motion: Plaintiff's Motion For Summary Judgment Or In The Alternative Summary Adjudication

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Tentative Ruling: U.S. Bank National Association v. Christopher W. Johnson

Case Number

25CV07189

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/04/2026 - 22:00

Nature of Proceedings

Plaintiff's Motion For Summary Judgment Or In The Alternative Summary Adjudication

Tentative Ruling

For all reasons stated herein, the motion of plaintiff for summary judgment or in the alternative summary adjudication is ordered off-calendar. Plaintiff shall serve, and file proof of service of, notice of the court's ruling herein.

Background:

On November 18, 2026, plaintiff U.S. Bank National Association (US Bank) filed a complaint against defendant Christopher W. Johnson (Defendant), alleging one cause of action for breach of contract. The complaint alleges that on January 30, 2024, a written agreement was made between US Bank and Defendant for the account ending in 0390, which Defendant breached by failing to pay US Bank pursuant to that agreement. (Complaint, ¶¶ BC-1(a), BC-2, BC-4, & exhibit A [agreement].) The complaint further alleges that, pursuant to the terms of the agreement for the account described above, Defendant has a current outstanding balance due of \$5,877.53. (Complaint, ¶ BC-4 & exhibit B [account record].)

On December 10, 2025, Defendant filed an answer to the complaint generally denying its allegations and asserting affirmative defenses.

On March 24, 2026, US Bank filed a motion for summary judgment in favor of US Bank and against Defendant, or in the alternative for summary adjudication.

Defendant has not filed an opposition to that motion with the court.

Analysis:

For the reasons discussed herein, the court will order the motion off-calendar, without prejudice to the refiling of that motion.

The proof of service attached to the notice of the motion states that the notice and the papers submitted in support of that motion were served by mail on March 24, 2026, “[b]y placing a true copy thereof, enclosed in a sealed envelope with postage thereon fully prepaid, for collection and mailing on that date following ordinary business practices, in the United States Mail at the offices of Zwicker & Associates, P.C., Concord, California, addressed as shown below.” (Notice at pdf p. 3.)

Relevant here, Code of Civil Procedure section 1013 provides that service by mail is complete when “the notice or other paper” is “deposited in a post office, mailbox, subpost office, substation, or mail chute, or other like facility regularly maintained by the United States Postal Service, in a sealed envelope, with postage paid, addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by mail[.]” (Code Civ. Proc., § 1013, subd. (a).)

Court records reflect that documents filed by Defendant in this case, which include the answer to the complaint and two case management statements, each list the name of counsel (Justin Reiter) and the law firm (Law Offices of Robert S. Gitmeid P.C.) representing Defendant. (Answer at p. 1; Case Management Statements dated Feb. 13 & Jul. 10, 2026, at p. 1 [“Attorney or Party Without Attorney”].) “Accordingly, the correctly addressed envelope should have included the firm name.” (Triumph Precision Products, Inc. v. Insurance Co. of North America (1979) 91 Cal.App.3d 362, 365 (Triumph).)

The proof of service shows that the notice and motion were mailed to Defendant’s counsel without including counsel’s law firm in the address. (Notice at p. 3 [“Name and Address of Each Person Served”].) “Where the envelope containing the notice is improperly addressed, it is as though notice were never mailed” (Triumph, supra, 91 Cal.App.3d at p. 365.) For these and all further reasons discussed above, the ineffectiveness of service of notice of the present motion, and the motion, “is thus manifest.” (Ibid.)

Relevant here, Code of Civil Procedure section 437c requires that the “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States” (Code Civ. Proc., § 437c, subd. (a)(2).) The proof of service also shows that the address at which the notice of the motion and the supporting papers were served by mail is outside the State of California. (Notice at p. 3 [listing the place of address as Oklahoma City, Oklahoma].) Therefore, and for all reasons discussed above, the required period of notice of the present motion is 91 days pursuant to subdivision (a)(2) of Code of Civil Procedure section 437c.

Though the present motion is calendared for hearing on September 4, 2026, requiring that the notice of the motion and the supporting papers be served no later than June 5, 2026, the service of the notice and supporting papers on March 24, 2026, was ineffective for all reasons discussed above. For these reasons, the motion fails to comply with the minimum notice period set forth in Code of Civil Procedure section 437c.

"[A] trial court's inherent power does not provide authority for a trial court to shorten minimum time periods when specified as mandatory by the Legislature." (Urshan v. Musicians' Credit Union (2004) 120 Cal.App.4th 758, 767.) "[A] trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties." (Id. at p. 768.) Under the circumstances present here and for all reasons discussed above, the court will order the motion off-calendar without prejudice to its refile upon the giving and effective service of notice of the motion and the supporting papers within the mandatory notice period prescribed in Code of Civil Procedure section 437c.

The court will order US Bank to serve, and file proof of service of, notice of the court's ruling herein.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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